

Defendant should so state, and the Court orders Defendant to provide a further response to Request for Production No. 10.

For the same reason discussed above, in relation to Requests for Admission, Set One, the Court again finds that the terms “property”, “Plaintiff’s property”, “PRR” and “INCIDENT” are not so ambiguous as to render the Requests unintelligible and prevent the Defendant from responding. As such, the conclusion that Defendant is unable to comply because these terms are undefined in Propounding Party’s Requests for Admission, lacks merit and the Court orders Defendant to provide further responses to Requests for Admissions Nos. 1, 2, 3, 4, 7, 8, 9 and 10.

Finally, as to Form Interrogatories, Set One, the Court finds that Defendant’s responses to Interrogatories Nos. 1.1 (with identification of the noted “various City departments and employees”); 12.1 (substantive response); and 15.1 (substantive response) require further response. The remaining Interrogatories: 2.1, 2.5, and 2.6 are irrelevant and the responses provided sufficient.

Defendant’s further responses shall be served within 20 days’ notice of this order.

Plaintiff’s request for sanctions is granted, the Court finding that Plaintiff was forced to seek this relief prior to Defendant providing Code compliant responses without substantial justification. The Court awards sanctions against Defendant and its counsel of record in the amount of \$450, which are to be paid within 30 days’ notice of this ruling. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

14. 25CV04770 OBRIEN, CAMERON RILEY V. PBM SUPPLY & MFG INC ET AL

EVENT: Defendant’s Motion to Compel Arbitration

The Court finds that Defendant PBM Supply & Mfg Inc. (“Defendant” herein) has established the existence of a valid and enforceable arbitration agreement. In terms of procedural and substantive elements of unconscionability, both must be present for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability, and the Court finds that neither procedural nor substantive unconscionability have been established by Plaintiff here. The Motion is granted. Plaintiff Cameron Riley Obrien is hereby ordered to arbitrate, in binding arbitration, his claims against Defendant and the matter is hereby stayed pending completion of arbitration. The Case Management Conference on June 3, 2026 is vacated, and the matter is set for a Review Hearing for status of arbitration on September 23, 2026 at 10:30 a.m. The Court will sign the form of order submitted by counsel.

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15-16. 26CV00248 BAM PROPERTIES LLC V. CITY OF OROVILLE

EVENTS: (1) Respondent and Defendant City of Oroville's Demurrer to First Amended Petition for Writ of Mandate and Complaint of Petitioner and Plaintiff BAM Properties LLC

(2) Status Conference

As to the Second Cause of Action for Violation of California Public Records Act ("CPRA" herein) and the California Constitution Failure To Assist, Conduct An Adequate Search and Produce Responsive Records, the Court finds that Petitioner/Plaintiff has failed to allege the existence of a public record. The Petitioner/Plaintiff must identify the requested record as a "public record" under the CPRA, which is defined as any writing containing information relating to the conduct of the public's business that is prepared, owned, used, or retained by any state or local agency. The Demurrer to the Second Cause of Action is sustained, and the Court grants leave to amend.

The Third Cause of Action for Violation of California Public Records Act Failure to Allow Inspection of Records and Failure to Produce Records Vesting Building Code Enforcement Authority and Identifying the Individual Authorized as the City's Building Official is sufficiently plead [see Amended Petition for Writ of Mandate at ¶¶87-94]. The Demurrer to the Third Cause of Action is overruled.

Finally, the Fourth Cause of Action for Petition for Writ of Mandate is sufficiently plead [see Amended Petition for Writ of Mandate at ¶¶7, 17-18, 23, 95-104]. The Demurrer to the Fourth Cause of Action is overruled.

The Status Conference is continued to August 12, 2026 at 10:30 a.m. Counsel are to submit a Status Report seven days prior to the hearing.

Counsel for the Respondent/Defendant shall prepare and submit a form of order consistent with this ruling within two weeks, and any amended Petition shall be filed and served within 14 days' notice of the order.